

Tentative Rulings for Department 502

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Tentative Ruling

Re: **Lopez v. Selma Auto Mall, Inc., et al.**
Superior Court Case No. 25CECG01871

Hearing Date: August 18, 2026 (Dept. 502)

Motion: by Plaintiff for an Order Compelling Defendants' Responses to Discovery

Tentative Ruling:

To grant Plaintiff's motions to compel Defendants Visalia Motors, LLC and Selma Auto Mall, Inc. to provide initial verified responses to Special Interrogatories, Set One. (Code Civ. Proc. §§ 2030.290, subd. (b).) Defendants are ordered to serve complete verified responses to the discovery set forth above, without objection, within 20 days of the clerk's service of the minute order.

To impose monetary sanctions in the amount of \$450 in favor of plaintiff and against Defendant Visalia Motors, LLC. Defendant is ordered to pay \$450 in sanctions to Blackstone Law, APC within 30 days of the clerk's service of the minute order.

Explanation:

A party that fails to serve a timely response to a discovery request waives "any objection" to the request. (Code Civ. Proc. §§ 2030.290, subd. (a).) The propounding party may move for an order compelling a party to respond to the discovery request. (Code Civ. Proc. § 2030.290, subd. (b).)

The discovery at issue was served on defendants Visalia Motors, LLC and Selma Auto Mall, Inc. on January 19, 2026. (Bragg Decl., ¶ 2, Ex. 1.) Despite plaintiff's efforts to address the lack of responses informally, defendants have failed to serve any responses. (*Id.* at ¶ 3-6, Ex. 2, 3.)

Therefore, plaintiff is entitled to an order compelling defendants to respond to Special Interrogatories, Set One, propounded by defendants on January 19, 2026. (Code Civ. Proc. §§ 2030.290, subd. (b).)

In addition, since defendants did not respond to the discovery in a timely manner, they have waived all objections. (Code Civ. Proc. §§ 2030.290, subd. (a).)

Sanctions

The court shall award sanctions against a party who unsuccessfully makes or opposes a motion to compel responses to discovery, unless it finds the one subject to the sanction acted with substantial justification. (Code Civ. Proc. § 2030.010, subd. (d), 2030.290, subd. (c).) Defendants have not submitted an opposition demonstrating substantial justification in their failure to provide responses.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 8-17-26
(Judge's initials) (Date)